DOUGLAS NZOMBE CHIUTSI
versus
SIMBARASHE MUSHAMBI DUBE

HIGH COURT OF ZIMBABWE
MUZENDA J
MUTARE, 16 and 18th February 2026

CIVIL TRIAL

Mr *C Ndlovu*, for the plaintiff
Ms. *P Mwandura*, for the defendant

MUZENDA J:

1. The plaintiff claims USD100 000 or its Zig equivalent from the defendant, interest at the prescribed rate from the date of summons to the date of full payment as well as costs of suit. Defendant denies liability and prays that plaintiff's claim be dismissed with costs.
2. The plaintiff, defendant and defendant's wife, Paula, used to be shareholders and directors of Clique Pharmacy, Mutare, owned by Healthwell Pharmacy (Private) Limited. Sometime in 2024 defendant lodged a criminal complaint with the local police alleging fraud and or theft against the plaintiff, defendant alleged that plaintiff tampered with data on the computer and committed fraud. Plaintiff was arrested, taken to court and later released on bail pending trial. The bail conditions among others restrained plaintiff from interfering with police investigations.
3. After the arrest of the plaintiff, defendant was also arrested by police based on allegations originating from the plaintiff. It was during police investigations pertaining to defendant and his wife that prompted police seized with the matter against defendant that asked plaintiff to go to Clique Pharmacy and assist police to access data contained in a server kept at the pharmacy.
4. Defendant per chance found plaintiff in the company of police details at Clique Pharmacy using the server which defendant had alleged plaintiff had used to commit fraud or steal

the company funds. On 6 February 2025 defendant lodged a complaint with police that plaintiff by visiting Clique Pharmacy premises, had violated his bail conditions. On 7 February 2025 plaintiff was arrested and taken to court for an enquiry before the magistrate on whether he had breached bail conditions.

5. After the magisterial enquiry, plaintiff was held to have breached his bail conditions and was then remanded in custody. Plaintiff appealed to the High Court where bail was restored by consent of the state.
6. Underlining these facts, plaintiff contends in his summons and declaration that defendant maliciously, wrongfully, without legal and probable cause filed a criminal complaint lying that plaintiff had violated his bail conditions. To the plaintiff, defendant was motivated purely by nothing else but malice. Plaintiff adds that the defendant and his team of lawyers overbore and unduly swayed the prosecutors to place the enquiry before the magistrate. During that enquiry, plaintiff contends further, the defendant falsely testified against the plaintiff. Defendant deliberately lied about the violation of the bail conditions. Defendant's testimony, to plaintiff, persuaded the magistrate to revoke plaintiff's bail conditions. Plaintiff in his pleadings attributes defendant's entire conduct as being wrongful, malicious and triggered the criminal complaint against plaintiff which caused the unnecessary and wrongful arrest and detention of the plaintiff. That is why plaintiff claims USD100 000.
7. In his plea, defendant contends that plaintiff misappropriated funds belonging to Healthwell (Pvt) Ltd using the server kept at the Pharmacy. It is the same server where plaintiff is alleged to have manipulated data to prejudice the pharmaceutical company. That was the gadget which defendant saw plaintiff accessing when he found plaintiff with the police at the pharmacy. Defendant states that he sincerely perceived that by accessing such critical gadget to be accessed by a suspect, plaintiff violated his bail conditions. Defendant adds that at the time he lodged the complaint about the breach of bail conditions he genuinely nursed a reasonable and probable cause to alert the state agents about the matter. According to the defendant the server was the key item required to prove the case against the plaintiff and that he was not allowed to access it without authority.
8. To the defendant, the penultimate prosecution and the order to remand plaintiff into custody had nothing to do with the defendant. The police, the prosecution and the magistrate were

all contented that plaintiff had breached his bail conditions. Defendant denies malice nor doing anything outside the expected that would invite civil liability.

9. Defendant further adds in his plea that he disputes that plaintiff suffered damages caused by defendant's conduct. To the defendant plaintiff did not show how he suffered the general damages of USD100 000, he denies any causal link between his conduct and the alleged damages. Defendant further adds that plaintiff's case does not sufficiently disclose a cause of action. It is defendant's view that no criminal charge was preferred against plaintiff, plaintiff was never prosecuted and no verdict of an acquittal followed such a prosecution. Further the defendant posits that the product of this enquiry was a bail revocation, which in principle constitutes no prosecution, plaintiff's imprisonment legally and naturally flowed from what a magistrate believed was a conduct that amounted to a breach of bail condition and hence the revocation. It is therefore defendant's prayer that plaintiff's claim be dismissed with costs.
10. On 21 January 2026 parties held a round table conference and agreed that the issues for trial are as follows:
    10.1. Whether or not defendant maliciously, wrongfully and without due legal and probable cause filed a criminal complaint against the plaintiff?
    10.2. whether or not the plaintiff suffered damages as a result of the criminal complaint? If so, what is the quantum?
11. Plaintiff testified and called detective constable Toronga from Commercial Crimes Harare. Plaintiff told the court that he was telephoned by D. C Toronga to go to the Pharmacy to identify a server which was required by the police detectives in a matter where plaintiff was a complainant. He further stated that he appraised D. C Toronga about the bail conditions but the police insisted on his presence so he went. On all other issues he repeated the bulk of what is contained in his pleadings. When detective constable Toronga testified in court he categorically denied that plaintiff alerted him of the prohibitive bail conditions. The two witnesses also gave conflicting statements as to what happened after plaintiff got to the pharmacy, how much time he took and what he did, how he was able to identify the exhibit which was the subject of the search and seizure. As a general observation, detective constable Toronga literally tore plaintiff's key aspects of his case and not much of probative

value can be extracted from his testimony. It is not clear why detective Toronga was not called to court during the enquiry into bail breach, and what became of the server collected by the detectives from Harare.

12. Defendant testified and stuck to his arsenals as they appear in his pleadings. He was subjected to a self-searching cross examination but he denied any malice, negligence, recklessness or negative motive, other than alerting the police as to what he perceived was an interference with police investigations over a matter where plaintiff was the suspect. Defendant called Mr. Allen Chikosha who did not add anything meaningful to the defence case other than emphasizing that plaintiff presumably using his own password logged in to access the server which contained information required by the police.
13. Most facts appear to this court as largely common cause. Plaintiff was on bail pending trial, one of the conditions of bail attached to his freedom pending trial was not to interfere with police investigations as well as by implication witnesses' evidence. It also appears to me further that plaintiff upon being called by detective Toronga to visit the pharmacy he went there and accessed more than one computer or server to identify, the one which was the subject of seizure. It is equally common cause that the subject server was central to both plaintiff and defendant containing data which was critical to either of them. It is further common cause that plaintiff did not tell detective constable Toronga that he was not allowed to interfere with investigations. Detective Toronga did not know that plaintiff was on bail, he was surprised to hear that plaintiff had been incarcerated for breaching his bail conditions. I therefore make a finding that the server contained very critical evidence relevant to the successful prosecution of the plaintiff and as well as to the allegations against defendant and his wife, it was indeed a security gadget. It is upon this basis that when defendant discovered that plaintiff had been granted access to the server, he decided to lodge a complaint which prompted enquiry into the issue of breach.
14. The prosecution in turn after getting the report or docket made a value decision that plaintiff owed the state an explanation to vindicate himself on the allegation of breach. The enquiry was held, defendant testified and the court accepted his perception of breach as valid, and concluded that plaintiff was guilty of breaching bail conditions. It is therefore common cause that the defendant, the prosecution and the presiding magistrate in the enquiry were

independent entities, each imbued with powers to reject what defendant had discerned as a conduct amounting to a breach or found sense in the observation. What is crucial to determine is whether the cause of action is the complaint filed by the defendant alleging breach of bail conditions by the plaintiff? If it is so whether the complaint was a lie meant to disparage the plaintiff? In other words, whether there was no legal basis at all to file a complaint which would amount to a malicious report against the plaintiff.

15. The Law

15.1. In the matter of *Bande* v *Muchinguri* 1999 ZLR 467 (H) (per MALABA J (as he then was)) at pp 46 H-477 B.

"Held that for the action to succeed, it had to be shown that the defendant actively set the law in motion. Simply giving a statement to the police is not the same as launching a prosecution…

Held further, that the plaintiff had to show that the defendant acted without reasonable and probable cause. For the defendant to have had reasonable and probable cause he would have to understand the offence as defined and to have reasonable and probable cause to believe that the plaintiff has omitted it.

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Held, further that "malice" did not here mean spite or ill-will or a spirit of vengeance, it had a wider connotation. It included any motive from that which is proper for the institution of criminal proceedings which is to bring an offender to justice and thereby aid in the enforcement of the law."

15.2. In the matter of *Manjoro* v *Minister of Home Affairs & Ors* 2018 (1) ZLR 279 (H) per DUBE J (as she was then) at pp 279G-280A the learned Judge held that:

"…. that for an arrest to be lawful, the arresting detail must ensure that before he arrests, he has verified the information or report which was received. He must formulate a reasonable suspicion that an offence has been committed…. If the arresting detail does not properly exercise his mind and the report turns out to be false, the arrest becomes unlawful. The onus is on the person wo has effected an arrest to justify the unlawfulness of the arrest. An arrest only becomes lawful where the arresting detail has formulated a reasonable suspicion that an offence has been committed."

15.3. In the matter of *Corneluis Masukume* v *Minister of Home Affairs & 3 Ors* HH 83/2013 PATEL J (as he was then) held:
"In order to establish the lawfulness of an arrest the arresting officer needs to show that he had reasonable grounds for suspecting that the arrestee has committed an offence. Additionally, even if there are reasonable grounds for arrest, he must show that his

> discretion to arrest and hold the arrestee in custody was exercised reasonably, either to prevent the arrestee's escape or the commission of some further crime or interference with police powers,"

16. Throughout his oral evidence and pleadings, plaintiff interchangeably alluded to "*unlawful detention and prosecution.*" In my view plaintiff is driving this court to apply principles legally applicable to delict arising from malicious prosecution to the facts of this matter. Plaintiff contends that the complaint of breach triggered the enquiry which precipitated in the revocation of the bail. In my view plaintiff's starting point is totally distinct from the normally accepted conduct of a defendant facing a suit for malicious prosecution. As can be discerned from the precedents alluded to above herein the burden of formulating a reasonable suspicion for arrest and detention leading to malicious prosecution lies on the shoulders of the arresting detail not the informant.
17. Plaintiff was arrested for the purposes of holding an enquiry not for prosecution. When the report of violation of bail conditions was received by the police, the police, as expected, caried out investigations and were satisfied that the conduct of the plaintiff required a formal enquiry. Police took the matter to the national Prosecuting Authority for consideration. Upon receiving the report, the prosecutor was satisfied that there was need to place the facts before a judicial officer for due process.
18. Once the matter eventually came before a magistrate for an enquiry, there is absolutely a rebuttable presumption that the judicial officer acted lawfully and within his or her limits of his/her authority. (See *Danha* v *Mudzongachiso N.O & Anor* 2018 (1) ZLR 74 (H) (per MATHONSI J) (as he then was).

    If defendant had lied to the police, police would have detected that, the prosecution would have equally noted that and declined the enquiry and ultimately the magistrate would have refused to revoke the bail conditions.
19. The fact that a judicial officer made a decision to revoke plaintiff's bail conditions, a presumption arises in favour of the defendant that his apprehension or suspicion was reasonably credible and deserving of a judicial enquiry. Where police, the prosecution and a judicial officer, believe that a breach of conditions of bail has been committed and especially where a full enquiry has been carried out leading to the revocation, the marked

thresh-hold required of the plaintiff is too lofty to allege that defendant maliciously filed a false report or that he or she lied.

20. *In casu*, plaintiff does not deny visiting the pharmacy where the server was kept. He admitted in court that he set open the server and accessed information albeit after being called by the police to assist. However, the fact remains that when defendant reacted to the information that plaintiff was operating the subject gadget, he found plaintiff on site. Defendant as well as plaintiff believed that the server contained very vital data for either's benefit or advantage. Indeed, plaintiff conceded that if police would not have summoned him, he would not have gone there because he knew that it was against his bail conditions.

    I am therefore unable in these circumstances to make a finding that defendant without reasonable cause lied to the police about the violation of bail conditions set by a court of law. I am further unable to discern any feasible cause of action at the plaintiff's instance that will entitle him to damages. Having found no causal link between defendant's conduct and plaintiff's claim the issue of quantum of damages becomes moot.

Accordingly, Plaintiff's claim is dismissed with costs.